



*Embassy of the United States of America
Athens, Greece*

April 8, 2026

To: Prospective Quoters

Subject: Request for Quotations number 19GR1026Q0020

Enclosed is a Request for Quotations (RFQ) for complete event management services for the celebration of the 250th anniversary of American Independence, to be held on July 2, 2026, at the Stavros Niarchos Foundation Cultural Center (SNFCC).

In order for a quotation to be considered, you must also complete and submit the following:

1. SF-1449 (blocks 17, 24 and 30). Block 24 should list the total value of the quote.
2. Section 1, The Schedule.
3. Additional information, as required in Section 3, Solicitation Provisions.
4. Additional information, as required in Section 4, Evaluation Factors.
5. Section 5, Representations and Certifications, FAR Provisions 52.204-24 and 52.204-26.
6. Your company's UEI (Unique Entity Identifier) as proof of SAM Registration (required if your quotation is above \$40,000).

Offerors shall be registered in the SAM (System for Award Management) database at <https://www.sam.gov> prior to submittal of their offer/proposal as prescribed under FAR 4.1102. Failure to be registered at time of proposal submission may deem the offeror's proposal to be considered non-responsible and no further consideration will be given. Therefore, offerors are highly encouraged to register immediately if they

are interested in submitting a response to this requirement (required for quotations above \$40,000 in value).

The U.S. Government intends to award a contract/purchase order to the responsible company submitting an acceptable quotation based on initial quotations, without holding discussions, although we may hold discussions with companies in the competitive range if there is a need to do so.

Your quotation must be submitted electronically by email with the subject line "**Quotation 19GR1026Q0020 Enclosed**" to AthensOffers@state.gov on or before 14.00 hours (Athens Time) on May 8, 2026. No quotation will be accepted after the cut-off date and time. Offers sent to the wrong email address will not be accepted.

An organized site visit will be held **on April 17, 2026, at 10.00 hours**. Prospective offerors/quoters should send their names and a contact phone number to AthProcurement@state.gov **no later than 12.00 hours on April 16, 2026**.

Please direct any questions regarding this solicitation in writing to email athprocurement@state.gov. Questions must be written in English, and may be sent by 12.00 hours local time, on **April 16, 2026**.

Sincerely,

Dresden A. Kalin
Contracting Officer

Enclosure as stated

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30				1. REQUISITION NUMBER PR15903184		PAGE 1 OF 83	
2. CONTRACT NUMBER		3.AWARD/EFFECTIVE DATE		4. ORDER NUMBER		5. SOLICITATION NUMBER 19GR1026Q0020	
7. FOR SOLICITATION INFORMATION CALL:		a. NAME Ms. Kelly Georgopoulou				b. TELEPHONE NUMBER (no collect calls) AthProcurement@state.gov	
						8. OFFER DUE DATE/ LOCAL TIME May 8, 2026 @ 14.00 hours (local time)	
9. ISSUED BY American Embassy -GSO 91 Vas. Sofias Avenue 101 60 ATHENS		CODE		10. THIS ACQUISITION IS [x] UNRESTRICTED [] SET ASIDE % FOR [] SMALL BUSINESS [] SMALL DISADV BUSINESS [] 8(A) SIC: SIZE STANDARD:		11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED [] SEE SCHEDULE 13a. THIS CONTRACT IS RATED ORDER UNDER DPAS (15 CFR 700) 13b. RATING 14. METHOD OF SOLICITATION [x] RFQ [] IFB [] RFP	
15. DELIVER TO		CODE		16. ADMINISTERED BY			
17a. CONTRACTOR / OFFEROR		CODE		FACILITY CODE		18a. PAYMENT WILL BE MADE BY	
						Electronic Funds Transfer (EFT) Payment	
[] 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER				18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a. UNLESS BLOCK BELOW IS CHECKED [x] SEE ADDENDUM			
19. ITEM NO.		20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY		22. UNIT	
		Event Management services for the 250th anniversary of American Independence, as stated in the Schedule.				23. UNIT PRICE	
						24. AMOUNT Euros	
25. ACCOUNTING AND APPROPRIATION DATA						26. TOTAL AWARD AMOUNT (For Govt. Use Only) Euros	
[x] 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA [x] ARE [] ARE NOT ATTACHED. [] 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA [] ARE [] ARE NOT ATTACHED.							
[] 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN _ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS AND CONDITIONS SPECIFIED HEREIN.				[] 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED _____ YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS: _____.			
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)			
30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)		30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (TYPE OR PRINT)		31c. DATE SIGNED	
32a. QUANTITY IN COLUMN 21 HAS BEEN [] RECEIVED [] INSPECTED [] ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED				33. SHIP NUMBER		34. VOUCHER NUMBER	
				[] PARTIAL [] FINAL		35. AMOUNT VERIFIED CORRECT FOR	
32b. SIGNATURE OF AUTHORIZED GOVT. REPRESENTATIVE				32c. DATE		36. PAYMENT [] COMPLETE [] PARTIAL [] FINAL	
						37. CHECK NUMBER	
41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT				38. S/R ACCOUNT NUMBER		39. S/R VOUCHER NUMBER	
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER				41c. DATE		40. PAID BY	
				42a. RECEIVED BY (Print)			
				42b. RECEIVED AT (Location)			
				42c. DATE REC'D (YY/MM/DD)		42d. TOTAL CONTAINERS	

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SECTION 1 - THE SCHEDULE
CONTINUATION TO SF-1449
RFQ NUMBER 19GR1026Q0020
PRICES, BLOCK 23

PERFORMANCE WORK STATEMENT

The purpose of this firm fixed price purchase order is to provide Event Planning Services for the celebration of the 250th anniversary of Independence of the United States. The event will be held on July 2, 2026, at the Stavros Niarchos Foundation Cultural Center (SNFCC) Lighthouse, Lighthouse Terrace, and the Panoramic Steps.

The services covered by this contract include, but are not limited to, venue rental, event management, audio-visual equipment rental and operation, and videography services.

Period of Performance: The contractor will begin set-up for the event no earlier than 8:00 a.m. on Wednesday, July 1, 2026, shall complete all set-up activities by 3:00 p.m. Thursday, July 2, 2026, and complete clean-up of the event space no later than 11:59 p.m. on Friday, July 3, 2026.

A detailed logistics schedule will be developed between the contractor and the U.S. Embassy.

PRICING

The contractor shall provide the services shown in the Schedule of Supplies/Services below, including furnishing all labor, personnel, equipment, materials, insurance, supervision, transportation, overhead and profit for the following firm fixed price.

Line Item	Description	Price – in Euros
01	Rental of venue	
02	Event Management Services	
03	Audio Visual Equipment Rental and Operation	
04	Stage Backdrop / Overhead Signage Cover	

05	Entertainment	
	Drone Light show or similar	
	Logistics (Deliveries, Pickup and Transport)	
06	Logistics (Equipment Set Up and Teardown)	
07	Logistics (Event Furnishings)	
08	Logistics (Lavatories)	
09	Logistics (Staff)	
07	On-site Transportation	
08	Decoration and Graphic Design	
09	Audio and Visual Documentation	
09	Medical Care/First Aid	
	GRAND TOTAL PRICE	

Note: The US Government will not make any advance payment for goods or services furnished pursuant to this agreement.

I. VALUE ADDED TAX

Value Added Tax (VAT) is not applicable to this contract and shall not be included in the amount above or invoices. The U.S. Embassy has a tax exemption certificate and status from the host government.

II. INVOICES AND PAYMENT

Advance Payment: Advance Payments are not authorized.

Billing Instructions: Electronic invoicing is the preferred means of submitting invoices. The contractor is encouraged to create and submit electronic invoices for this contract, in lieu of paper copies, to ATHFMCVOUCHER@state.gov, as follows:

The invoice shall identify the “PR number” covered therein, the total value, and supported by the required documentation only.

Information for the invoice:

Name: ΠΡΕΣΒΕΙΑ ΗΝΩΜΕΝΩΝ ΠΟΛΙΤΕΙΩΝ ΑΜΕΡΙΚΗΣ

Business Type: ΠΡΕΣΒΕΙΑ

Address: ΒΑΣ. ΣΟΦΙΑΣ 91

City/Postal Code: ΑΘΗΝΑ 10160

Phone: 210-693-4911

Tax ID: 099338767

Tax Office: ΚΕΦΟΔΕ ΑΤΤΙΚΗΣ

Payment shall be made in Euros by Electronic Funds Transfer (EFT) within 30 calendar days after receipt of the proper statement. Payments may be made directly to any bank account established by the Contractor to receive payments. If there is a wire fee for the wire transfer, this fee is the responsibility of the beneficiary. Inquiries pertaining to payment will only be addressed to the following telephone number: 210.693.4773.

III. SECURITY

General. The Government reserves the right to deny access to U.S.-owned and U.S.-operated facilities to any individual. The Government will run background checks on all proposed Contractor employees. **After award, the contractor has five (5) calendar days to provide the names and a clear copy of the ID card or passport on all contractor personnel who shall be used on this contract. Please include back-up personnel as well.** For each car/truck that will enter the premises, the license plate number with a copy of the license is also required.

IV. STANDARDS OF CONDUCT

(a) General. The contractor shall maintain satisfactory standards of employee competency, conduct, cleanliness, appearance, and integrity and shall be responsible for taking such disciplinary action with respect to employees as required. Each Contractor employee is expected to adhere to standards of conduct that reflect credit on themselves, their employer, and the United States Government. The Government reserves the right to direct the contractor to remove an employee from the worksite for failure to comply with the standards of conduct. The contractor shall immediately replace such an employee to maintain continuity of services at no additional cost to the Government.

(b) Uniforms. The contractor's employees shall wear clean, neat and identifiable uniforms, although not necessarily identical uniforms.

(c) Disorderly conduct, use of abusive or offensive language, quarreling, intimidation by words, actions, or fighting shall not be condoned. Also included is

participation in disruptive activities that interfere with normal and efficient Government operations.

(d) Intoxicants and Narcotics. The contractor shall not allow its employees while on duty to possess, sell, consume, or be under the influence of intoxicants, drugs or substances that produce similar effects.

All employees shall be in good general health and capable of acceptable performance of their duties. All employees shall be free from communicable diseases.

V. LAWS AND REGULATIONS

Without additional expenses to the Government, the contractor shall comply with all laws, codes, ordinances, and regulations required to perform this work. If there is a conflict between the contract and requirements of local law, the contractor shall promptly advise the Contracting Officer of the conflict and of the Contractor's proposed course of action for resolution by the Contracting Officer.

The contractor shall comply with all local labor laws, regulations, customs and practices pertaining to labor, safety, and similar matters, unless they are inconsistent with the requirements of this contract.

VI. INSURANCE

Personal Injury, Property Loss or Damage (Liability). The contractor assumes absolute responsibility and liability for any and all personal injuries or death and property damage or losses suffered due to negligence of the Contractor's personnel in the performance of this contract. The contractor's assumption of absolute liability is independent of any insurance policies.

VII. VENUE SAFETY COORDINATION

The contractor shall meet the performance requirement of providing advisory coordination support with the venue safety personnel to ensure alignment with venue safety procedures, emergency protocols, and occupancy requirements applicable to the event.

QUALITY ASSURANCE AND SURVEILLANCE PLAN (QASP)

This plan provides an effective method to promote satisfactory contractor performance. The QASP provides a method for the Contracting Officer's

Representative (COR) to monitor contractor performance, advise the Contractor of unsatisfactory performance, and notify the Contracting Officer of continued unsatisfactory performance. The contractor, not the Government, is responsible for management and quality control to meet the terms of the contract. The role of the Government is to monitor quality to ensure that contract standards are achieved.

Performance Objective	Scope of Work Paragraphs	Performance Threshold
<u>Services.</u> Performs all services set forth in the scope of work.	ALL	All required services are performed, and no more than one (1) customer complaint is received per month.

1. SURVEILLANCE. The COR will receive and document all complaints from Government personnel regarding the services provided. If appropriate, the COR will send the complaints to the Contractor for corrective action.
2. STANDARD. The performance standard is that the Government receives no more than one (1) customer complaint per month. The COR shall notify the Contracting Officer of the complaints so that the Contracting Officer may take appropriate action to enforce the inspection clause (FAR 52.212.4, Contract Terms and Conditions-Commercial Items (May 2001), if any of the services exceed the standard.
3. PROCEDURES.
 - (a) If any Government personnel observe unacceptable services, either incomplete work or required services not being performed they should immediately contact the COR.
 - (b) The COR will complete appropriate documentation to record the complaint.
 - (c) If the COR determines the complaint is invalid, the COR will advise the complainant. The COR will retain the annotated copy of the written complaint for his/her files.
 - (d) If the COR determines the complaint is valid, the COR will inform the Contractor and give the Contractor additional time to correct the defect, if additional time is available. The COR shall determine how much time is reasonable.
 - (e) The COR shall, as a minimum, orally notify the Contractor of any valid complaints.

(f) If the contractor disagrees with the complaint after investigation of the site and challenges the validity of the complaint, the Contractor will notify the COR. The COR will review the matter to determine the validity of the complaint.

(g) The COR will consider complaints as resolved unless notified otherwise by the complainant.

(h) Repeat customer complaints are not permitted for any services. If a repeat customer complaint is received for the same deficiency during the service period, the COR will contact the Contracting Officer for appropriate action under the Inspection clause.

CONTINUATION TO SF-1449,
RFQ NUMBER 19GR1026Q0020
SCHEDULE OF SUPPLIES/SERVICES, BLOCK 20
DESCRIPTION/SPECIFICATIONS/WORK STATEMENT

EVENT OVERVIEW

The U.S. Embassy Athens seeks proposals to produce a gala event commemorating the 250th anniversary of the United States. The event will have three primary phases: (1) a standing cocktail reception; (2) a program including live musical entertainment, tributes, and visual displays honoring the United States (e.g. drone light show or similar, being mindful of permitting laws); (3) a performance by a high-profile musical artist and (4) an afterparty in the same venue.

The contractor shall furnish all necessary personnel, materials, services, and facilities for the performance of the work. The contractor shall significantly transform the space to be awe-inspiring and welcoming at once, including elements of the Freedom250 branding as in Attachment 3. The United States Embassy and Consulate of Greece will have full creative control of the program to be implemented by the contractor.

The approximately 3000-person event will take place on Thursday, July 2, 2026, from approximately 7:00 p.m. to midnight at the Stavros Niarchos Foundation Cultural Center (SNFCC) Lighthouse Terrace, and the Panoramic Steps. These areas will be dedicated and closed to the public for the event; the design of the event may incorporate select elements in spaces of the SNFCC designated public, such as limited directional signage and alteration of the color of the public fountains. The contractor will be responsible for overall design and vision of the event and implementation of said design/vision, to include coordinating with the in-house catering company and in-kind donors, providing event and performance management services including stage management and audio-visual equipment rental and operation, and providing on-site transportation, portable toilets, and medical care/first aid.

I. RENTAL OF VENUE

The contractor shall secure the rental of the Stavros Niarchos Foundation Cultural Center (SNFCC) for a total of three (3) consecutive days, spanning July 1, 2026,

through July 3, 2026. This period shall include one full day for setup (July 1), the event day (July 2), and one full day for breakdown and load-out (July 3). The scope of the venue rental shall include the following specific areas: the Lighthouse, the Lighthouse Terrace, and the Panoramic Steps, as well as all dressing and meeting rooms necessary to support the event operations.

Dressing and meeting spaces required include:

- Dressing rooms for high-profile musical artists, each with a private bathroom.
- Dressing room for the speaker, with vanity, seating, a well-lit mirror, appropriate electrical connections, and a private bathroom (for use before, during, and after the event);
- Small private “green room” or holding space created/located in a corner of the lighthouse with sofas, tables, chairs, and lighting staged for brief meetings between speakers and officials (subject to Protocol team review);
- One room for joint staging of the Embassy’s contract security force and Hellenic Police emergency response team; and
- One additional room for dressing and staging of the Embassy’s Marine Detachment and U.S. Military Band;
- One dressing room for Embassy event staff use.

The contractor is responsible for ensuring all logistical requirements and site-specific regulations for these spaces are met to accommodate the full execution of the event program.

II. EVENT MANAGEMENT SERVICES

The contractor will develop and execute the design of the event centered on the Freedom250 theme, presenting multiple proposals to the U.S. Embassy and Consulate of Greece for selection and further editing.

The contractor will provide event management services and staff, to include: coordinating planning, set-up, take-down/clean-up, and management of all third-party contractors incorporated under the services of this contract. The contractor will work closely with Embassy representatives to plan and execute all services. The contractor will also work closely with the SNFCC management staff to ensure all venue rules and guidelines are followed. The contractor will work with Embassy representatives and SNFCC to ensure that all staff and services adhere to accessibility rules and standards for people with disabilities. The contractor will adhere to the Embassy security office’s guidelines as included in

this performance of work statement to ensure that all staff are cleared up prior to the event, and the contractor will ensure that all staff and services adhere to the Embassy and SNFCC security requirements. The contractor is required to have regular and routine communications with Embassy representatives. Meetings and communications may include face-to-face and non-face-to-face methods, such as teleconference and other technology -enable methods. The contractor's proposal must include a general communications strategy.

The contractor must assign an Event Lead who shall be responsible for the overall management of the contract. The contractor shall be required to maintain such internal policies and procedures as may be required to ensure the smooth operation of the project's scope and complexity.

The contractor must provide a continually updated organizational chart that clearly identifies all key staff positions and shows the proposed lines of authority within the contractor's organization and with sub-contractors and/or consultants (if any).

III. AUDIO-VISUAL EQUIPMENT RENTAL AND OPERATION

The contractor will provide a sound system that provides full coverage throughout the event space. The contractor will propose ideal location of audio and visual equipment so that the maximum number of guests can view the program without interfering with the decor of the event space. The contractor will provide high speed Wi-Fi throughout the event space, including at the entrances for setup, the event, and teardown. The contractor will stage manage the performances and program.

The contractor will provide for all attendees to see and hear the performances and tributes, which could include use of LED screens, projectors, or other creative solutions.

IV. STAGE BACKDROP AND OVERHEAD SIGNAGE COVER

The contractor will propose a stage area that suits the venue and occasion and includes decoration honoring the occasion featuring a red, white, and blue color scheme and the U.S. flag, in line with set U.S. government and Freedom250 branding, and a podium with very good lighting displaying the U.S. Great Seal.

The stage will be used for speeches, a high-level musical artist, a U.S. military band, and a ceremony with flags by the U.S. Embassy Marine detachment. The

stage must support a grand piano. The contractor will provide audio visual equipment to display subtitles in English and Greek.

The contractor will also provide a DJ playing U.S. instrumental and vocal hits from the 20th and 21st centuries to provide musical services during gaps in the evening's live musical performances and during the afterparty.

V. ENTERTAINMENT

This event will feature performing artists with a backup band, as well as a separate U.S. military band. The artists will be selected and funded by the Embassy. The contractor will provide audiovisual equipment, flooring (if needed), furniture, power distribution, and musical equipment to support these performers, including green room space, dressing room(s) for the artists, and hospitality as specified in the artists' riders.

VI. LOGISTICS

Deliveries

All truck deliveries must be completed no later than 2:00 p.m. on July 2, 2026. The contractor must ensure that sufficient time is factored for all deliveries to undergo security screening requirements.

The contractor will be the full liaison and coordinator with the venue management, including caterers, suppliers, sponsors, and Embassy representatives, as applicable.

Equipment Set Up and Teardown

All event equipment shall be delivered and installed no later than 2:00 p.m. on July 2, 2026. The contractor must ensure that sufficient time is factored for all deliveries to undergo security screening requirements. All equipment and any other remaining items must be removed from the event space no later than 11:59 p.m. on July 3, 2026. The contractor shall return the event space to its original condition by July 3, 2026, at 11:59 p.m.

Event Furnishings

The contractor shall provide furniture, stanchions, carpet, lounge seating, podium/lectern, reception desks, and related equipment. Placement of furniture

should not restrict venue flow. This will not be a seated event. The contractor shall utilize cocktail tables and other solutions to accommodate standing guests.

Lavatories

The SNFCC lacks sufficient bathrooms for an event with three thousand guests. The contractor will provide additional air-conditioned, luxury portable toilets to comfortably accommodate the event, including a minimum of 10% ADA-compliant, wheelchair-accessible units (or as required by local accessibility regulations) to ensure full inclusivity. The contractor will propose a method of placement to maximize availability and accessibility for all guests while minimizing disruptions and odors. The contractor will also propose decoration so as not to detract from the event space's decor. The contractor will also provide staff with both the portable bathrooms and the permanent bathrooms in the event space.

Staff

The contractor provides and manages event staff, including technical personnel, and production staff, with coordination of dress code and presentation standards.

The contractor shall provide professional cleaning services during and after the event, including waste management coordination.

VII. ON-SITE TRANSPORTATION

The SNFCC has only two elevators and one extended pedestrian walkway. The elevators will be reserved for select guests and people with disabilities only. Guests will arrive at SNFCC at multiple points of entry, including, but not limited to, the parking garage, Evripidou Street, Poseidonos Avenue, and Syggrou Avenue. The contractor will propose transportation options to take guests from their point of arrival to the check in point at the entrance to the pedestrian walkway. The Embassy welcomes creative proposals to quickly and comfortably escort guests to and from the event space, bearing in mind guests will pass through security screening at the check-in point via metal detectors.

VIII. DECORATION AND DOCUMENTATION

Decoration and Graphic Design

The contractor will propose decoration for the event space befitting America's 250th anniversary, including red, white and blue imagery. The contractor will adhere to the Department of State's Freedom250 branding guidelines while also celebrating the United States of America's partnership with Greece, working in consultation with the Embassy's public diplomacy team. Branding must also comply with SNFCC requirements (see Attachment 1). The Embassy encourages proposals that make creative use of elements including lighting and drones. Decorations should include a "step and repeat" photo area and a red carpet for arrivals and VIPs.

The contractor will also propose creative ways to display classic American products, including a motorcycle, and will honor donors to the event by featuring their logos.

The contractor must provide design, layout, and other graphic design services in the creation of signage, posters, banners, and other graphic materials for use at the event using the provided Freedom250 branding.

The contractor shall be able to work in a variety of media and formats to create high quality and visually appropriate designs and to fabricate the required graphic materials using a range of appropriate materials. The contractor shall also be able to deliver high-quality products under tight time constraints. Contractor shall liaise and coordinate closely with Embassy representatives on all relevant matters.

Audio and Visual Documentation

The contractor is required to create audio/visual products documenting the event. The contractor shall produce the deliverables in a creative manner using the latest technical approaches to design and sound. The contractor shall have captioning in English/Greek on the video deliverables or as specified by the Embassy.

The contractor must provide an event photographer and videographer to capture the event. Photos shall not be watermarked and shall be provided to the Embassy in a high-resolution .jpeg format no later than midnight the day of the

event. All intellectual property rights (including copyright) for all photographs shall belong to the United States Embassy. The contractor shall provide all photographs to the Embassy via a secure live link.

The contractor should present and implement a creative photographic event memento for guests to take home with them (examples – photo booth, photographer producing magnet mementos on site.)

IX. MEDICAL CARE/FIRST AID

The contractor will propose and provide sufficient medical and emergency care to safely accommodate a party with 3,000 guests at an indoor-outdoor event, in compliance with all applicable venue and government requirements.

X. SECURITY

The Embassy and SNFCC will be responsible for coordinating all security measures for the event. The contractor will work with the Embassy and SNFCC security staff to ensure appropriate space is available to set up multiple walk-through metal detectors and screening tables at the check-in points at the entrance to the pedestrian walkway and elevators. The contractor in coordination with Embassy representatives and the SNFCC will implement a plan to convey guests to and from the event space using elevators and walkways, prioritizing elevators for those with mobility challenges and VVIPs.

XI. CANCELLATION POLICY

The contractor must provide its proposed cancellation policy and other proposed special terms and conditions, including if attendance is lower than what is stated in the Performance Work Statement and the Embassy decides to reduce the number of staff or food items prior to event.

XII. BUDGET INFORMATION

Budget Range/Not to Exceed: The total payment for services rendered under this contract shall not exceed \$350,000 US (in Euro equivalent) unless otherwise authorized in writing.

Budget Constraints: To comply with budget constraints, the Embassy reserves the right to prioritize services critical to the event and eliminate other proposed services.

XIII. KEY PERSONNEL

The contractor shall meet the performance requirement of designating the following key personnel roles:

Event Lead – Responsible for overall advisory coordination, planning integration, and primary support to the Government for event readiness and execution outcomes.

Name _____ **(to be provided by the Offeror)**

ATTACHMENT 1

Exhibitor's Manual

STAVRO
NIARCHOS
FOUNDATION
CULTURAL
CENTER

ΚΕΝΤΡΟ
ΠΟΛΙΤΙΣΜΟΥ
ΔΡΥΜΑ
ΣΤ
ΝΙΑΡΧΟΣ

Electrical Installations/ Wiring/ Equipment

Third party's tertiary equipment of any type, that is to be connected to SNFCC infrastructure should have been checked by an authorized electrician or engineer of the equipment's owner. In SNFCC public spaces and areas, cables must be placed inside either existing cable channels, or extra cable covers provided by the equipment's owner.

All connections to SNFCC Infrastructure' pylons, network, switch boards, distribution panels, water supply, etc., should have been pre-approved and supervised by authorized personnel of ENGIE, the Company tasked with SNFCC maintenance.

For that purpose, the event's Production Company/ Technical Support Company/ Event Organizer's Technicians/ Catering Managers should submit in writing 15 days prior to the event's set-up date the following:

- Final requirements concerning the places and power of electrical supplies
- Final requirements concerning any other supplies (water, network etc.)

No intervention/ modification to SNFCC infrastructure installations is allowed without the SNFCC Facilities Department's and Maintenance Company's written consent.

No SNFCC infrastructure safety feature or device (protection relays and/or circuit breakers) can be turned-off or by-passed for any reason.

In case of defective equipment, its removal will be immediately requested.

Power requirements that may exceed the requested amount could be permitted and the extra equipment (that was not included in the original request) allowed to be connected to the SNFCC infrastructure only if feasible and the relevant request is approved by the SNFCC's Maintenance Company.

Work Areas / Hours

Work areas, of any type, should be clearly defined, safe and properly signed and fenced. All workers inside work areas are obliged to wear Personal Protection's Special Equipment. Work Hours inside the Park and grounds are between 06.00 and 23.00. Quiet hours should be followed according to regulations and laws. Any works that are necessary beyond SNFCC's working hours, could proceed only following SNFCC's approval provided that no disturbance to SNFCC's surrounding area and neighbors is occurred.

A Safety Engineer of the Production/Technical Support Company should supervise all works as required. His/ Her name should be communicated to SNFCC in advance.

All works should be safely take place, according to Health & Safety procedures and regulation.

Electrical Installations/ Wiring/ Equipment

Third party's temporary equipment of any type, that is to be connected to SNFCC infrastructure should have been checked by an authorized electrician or engineer of the equipment's owner. In SNFCC public spaces and areas, cables must be placed inside either existing cable channels, or extra cable covers provided by the equipment's owner.

All connections to SNFCC Infrastructure' pylons, network, switch boards, distribution panels, water supply, etc., should have been pre-approved and supervised by authorized personnel of ENGIE, the Company tasked with SNFCC maintenance.

For that purpose, the event's Production Company/ Technical Support Company/ Event Organizer's Technicians/ Catering Managers should inform in writing 15 days prior to the event's set-up date the following:

- Final requirements concerning the places and power of electrical supplies
- Final requirements concerning any other supplies (water, network etc.)

No intervention/ modification to SNFCC infrastructure installations is allowed without the SNFCC Facilities Department's and Maintenance Company's written consent.

No SNFCC infrastructure safety feature or device (protection relays and/or circuit breakers) can be turned-off or by-passed for any reason.

In case of defective equipment, its removal will be immediately requested.

Power requirements that may exceed the requested amount could be permitted and the extra equipment (that was not included in the original request) allowed to be connected to the SNFCC infrastructure only if feasible and the relevant request is approved by the SNFCC's Maintenance Company.

Work Areas / Hours

Work areas, of any type, should be clearly defined, safe and properly signed and fenced. All workers inside work areas are obliged to wear Personal Protection's Special Equipment. Work Hours inside the Park and grounds are between 06.00 and 23.00. Quiet hours should be followed according to regulations and laws. Any works that are necessary beyond SNFCC's working hours, could proceed only following SNFCC's approval provided that no disturbance to SNFCC's surrounding area and neighbors is occurred.

A Safety Engineer of the Production/Technical Support Company should supervise all works as required. His/ Her name should be communicated to SNFCC in advance.

All works should be safely take place, according to Health & Safety procedures and regulation.

Raised work platforms / Cranes

Cranes and raised work platforms, including personnel's lifting machines etc., should be certified. Their operators should have a relevant operator's license, while users must wear safety belts.

Temporary Constructions

All temporary constructions such as spectators' bleachers, platforms, fencing, signs, sound and light scaffolds, etc. should be designed and installed by specialized personnel. All temporary constructions must be signed-off by a specialized engineer according to construction's condition (red: under construction, green: safe for use). All spectators' bleachers must be reviewed by an independent engineer and certified for use before the event's outset. **Nails, screws, pins, metallic hooks, glues, etc. ARE FORBIDDEN to be used on ANY permanent SNFCC surface/ construction.** Rubber covers should be placed onto any sharp edge, poles, etc. in order to avoid injuries.

Special attention should also be paid to external areas for protection of SNFCC's vegetation (bushes, trees including roots) and Park's irrigation system. It is forbidden to drive any material into Park's soil and/or grass (chocks, sticks, thimbles etc.).

Cargo's transportation within the facilities

Production / Technical Support Companies are obliged to provide information regarding the vehicles' types that are about to be used during the event/ event preparation (arrival time, purpose, materials that will be transferred, car license plates) at least 24 hours prior to the arrival time.

Cargos' transportation inside the buildings is allowed only manually. By exception, upon approval, lightweight wheeled platforms can be used, provided that the wheels are soft, clean and suitable for use in interior spaces on sensitive surfaces.

Heavy loads are allowed to be placed on the floor only if a suitable protective material is used underneath. This also applies for vehicles movement on the marble surfaces of the external areas.

It is imperative to fully and appropriately protect the PROLAT-surfaced Park's paths and the interior and exterior marbles in case of any cargo's transportation. Loading and unloading areas should be determined in advance, with distinct signs, properly secured. While in use an employee of the Production/Technical Support Company will be in charge of loading/unloading. Additional attention should be paid into balancing the load distribution. The Production / Technical Support Company is responsible to ensure that all machinery operators are appropriately licensed.

It is highlighted that on the PROLAT Surfaced Paths of Stavros Niarchos Park only small electric vehicles (golf carts) are allowed to move.

Placing protective material on Park's concrete paths is not required. Nevertheless, a permission to enter the Park's concrete paths is granted by SNFCC, only following a request where the vehicle, the entrance's purpose and mainly the vehicle's weight are mentioned.

Facility Management Contractor Services

SNFCC Facilities' Management is performed by a specialized company (ENGIE) that is in charge of regular operation, security, cleaning, waste and maintenance. The following services provided by ENGIE, will be charged extra according to the contract terms, provided that they are required for a particular event:

- Cleaning
- Security
- Technical Support
- Waste collection
- First Aid

The Production / Technical Support Companies and/ or Event Organizer should confirm the extra exclusive services, at least 15 days before the event, so that they are scheduled accordingly.

SNFCC has the right to determine the lowest level of these services required for a particular event.

Extra exclusive services could be requested only in case of emergency SNFCC and/or ENGIE cannot guarantee though, that the requests will be fulfilled.

In parallel to the exclusive services, there is always technical staff on SNFCC area, which can intervene in case of emergency, according to the response time and work hours stipulated in ENGIE Company's FM contract.

Signs / Sponsors / Advertising

Beyond the areas allocated to an event, the placement of directional signage for the event is also allowed.

These signs must use SNFCC's equipment (stands), while its contents should be pre-approved by SNFCC. Moreover, space for potential sponsors' displays may be allocated, following specific agreement.

In the area of the event, placement of signs, advertising and/ or sponsors' installations is allowed only with SNFCC's approval.

Nails, screws, pins, metallic hooks, glues, etc. ARE FORBIDDEN to be used on ANY permanent SNFCC' surface/ construction.

Venues/ Access

Only spaces that have been agreed for an event could be used for the event, the event's set up, materials' storage, event's working area (backstage) etc.

Especially public areas (Front of House) cannot be used in any case as auxiliary areas of an event unless agreed otherwise.

Access to the venues for the event's set up will take place within an agreed time frame and exclusively from the route that has been indicated by SNFCC for cargo transportation and the event's set up.

Public's access to the event venues is allowed within an agreed time frame and via an agreed public route.

Especially, regarding the elevators' usage, cargo transportation should take place only from auxiliary (secondary) elevators (Back of House) which have the appropriate flooring for heavy loads. Public elevators (Front of House) and especially SNFCC's panoramic elevators are not allowed to be used for Cargo transportation.

Productions companies/ Audiovisual systems

The Technicians of the Production / Technical Support Company assigned by the event manager undertake full responsibility to use SNFCC's audiovisual systems.

Companies/ Technicians that use SNFCC's permanent AV equipment should be extremely careful and inform appropriately the permanent user of each system (e.g. Opera sound Consoles: GNO's Sound Department). By using the systems, they automatically declare and guarantee their ability to skillfully operate the equipment; at the end of each event, systems will be tested so as to verify proper operation (ideally with user's presence).

Companies/ Technicians are not allowed to change the settings, positions, restrictions and directions etc. of SNFCC's permanent equipment without the permanent user's presence or consent.

IT & Telecommunications Services

Activating/ using network points and also connecting any third party's device to the SNFCC network infrastructure requires prior notice and approval of the ICT department. Approval is provided on the condition that each partner takes all reasonable security measures at a device level (hardware updates, software updates, antivirus updates, etc), both before the connection is made and throughout the connection of the device to SNFCC's network infrastructure.

At the same time, wireless network broadcast is not allowed from any third party's device, without prior notification and express approval of SNFCC. Moreover, it is clarified that unauthorized wireless networks that broadcast on the 2.4GHz and 5GHz bands are likely to malfunction due to the automated wireless security settings of SNFCC wireless network.

Finally, especially with regard to the live streaming productions:

- Use of "dedicated hardware encoders" instead of laptops or other non-specialized devices is required.
- Network points related to "Video Streaming" services should only be linked directly to the "Encoder" without other active devices' interfering.
- Provision of network points in order to connect other devices to the Internet should be requested in advance, with reference to number and type of devices.
- "Network Switch" connection, or connection of other similar network devices, is not allowed in SNFCC's network infrastructure. Consequently, unauthorized use of "Network Switch" connection will automatically lead to the disabling of the network port and blocking of connected devices via this switch from SNFCC network.

- Use of "Network Switch" connection by exception requires prior consultation and approval by the ICT department.

Decommissioning / Restoration

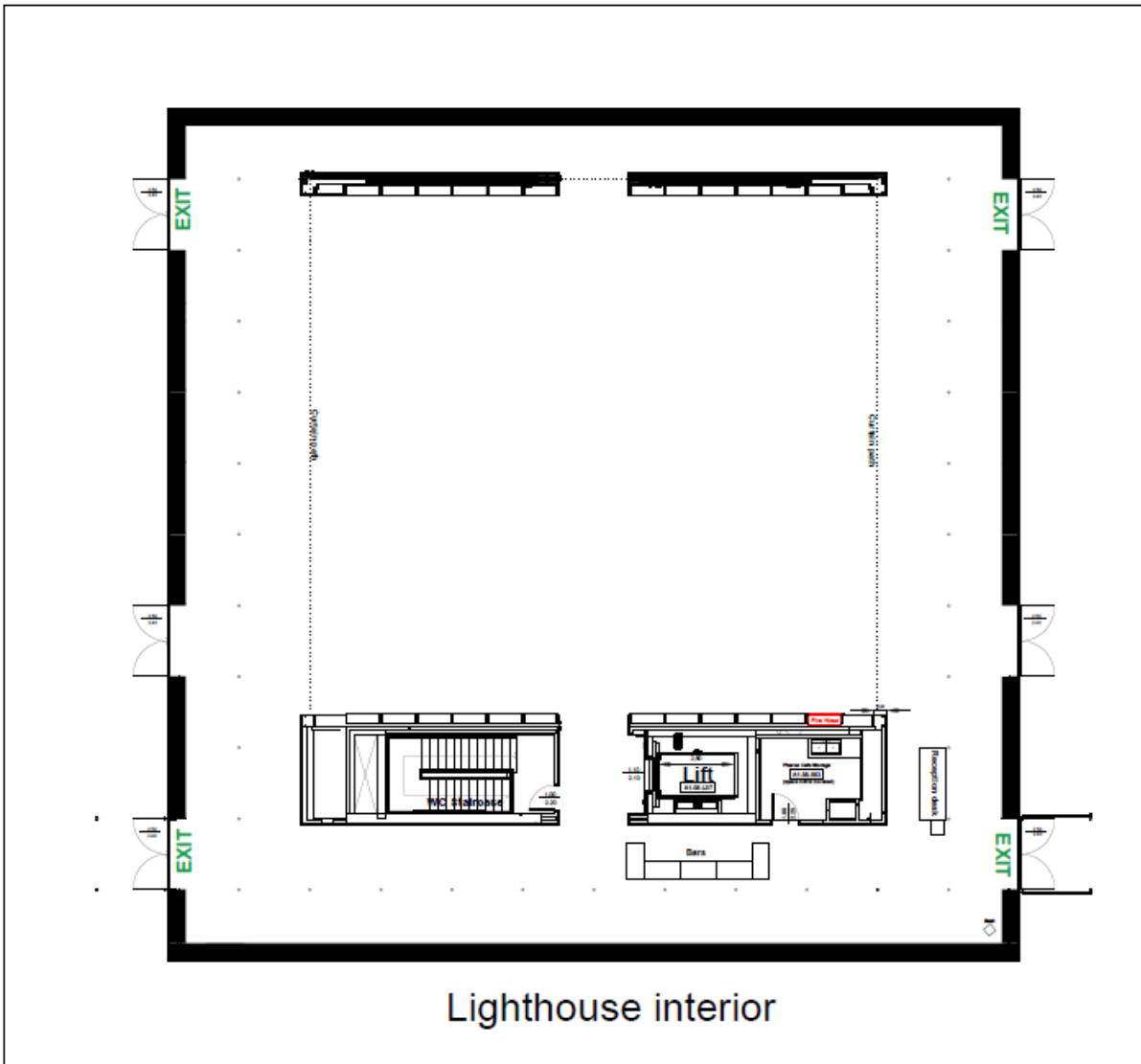
Decommissioning of all temporary installations and event's equipment should be carried out with similar caution and care as the original installation. The aim should be to leave the space in the exact same condition, furniture arrangement and cleanliness as it was prior the event.

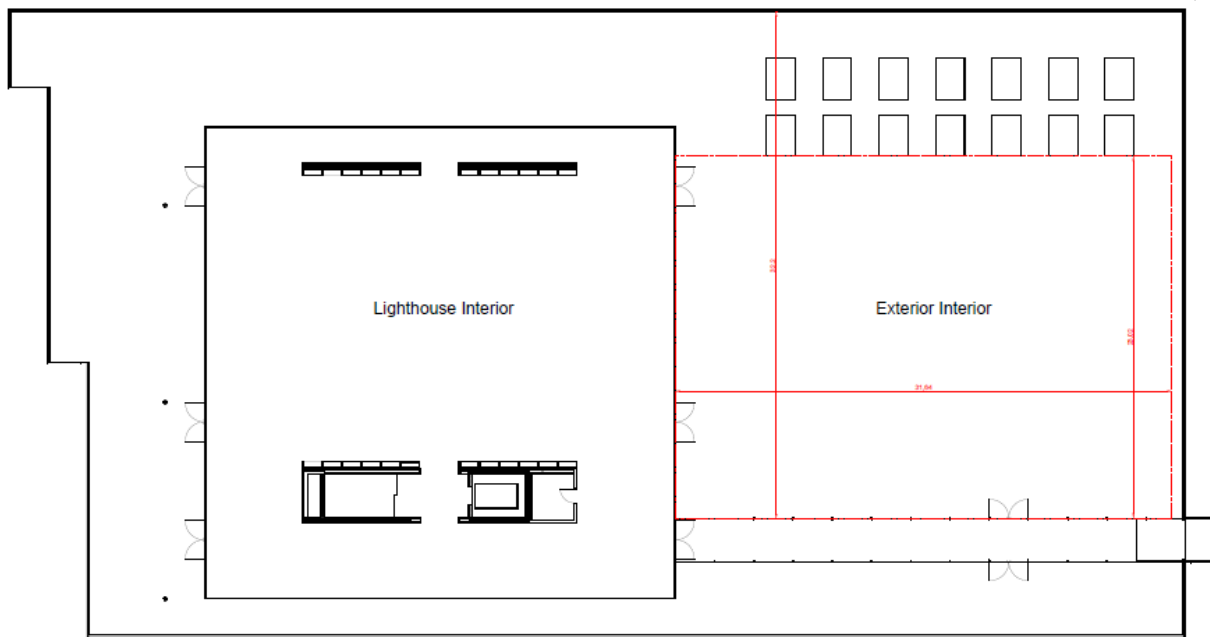
All permanent and temporary events equipment, consumables etc. should be removed from the SNFCC area by the Production Company/ Technical Support Company/ Catering Company/ Sponsor, etc. Wastes are removed by Engie under the agreement of additional exclusive services provided.

Damages

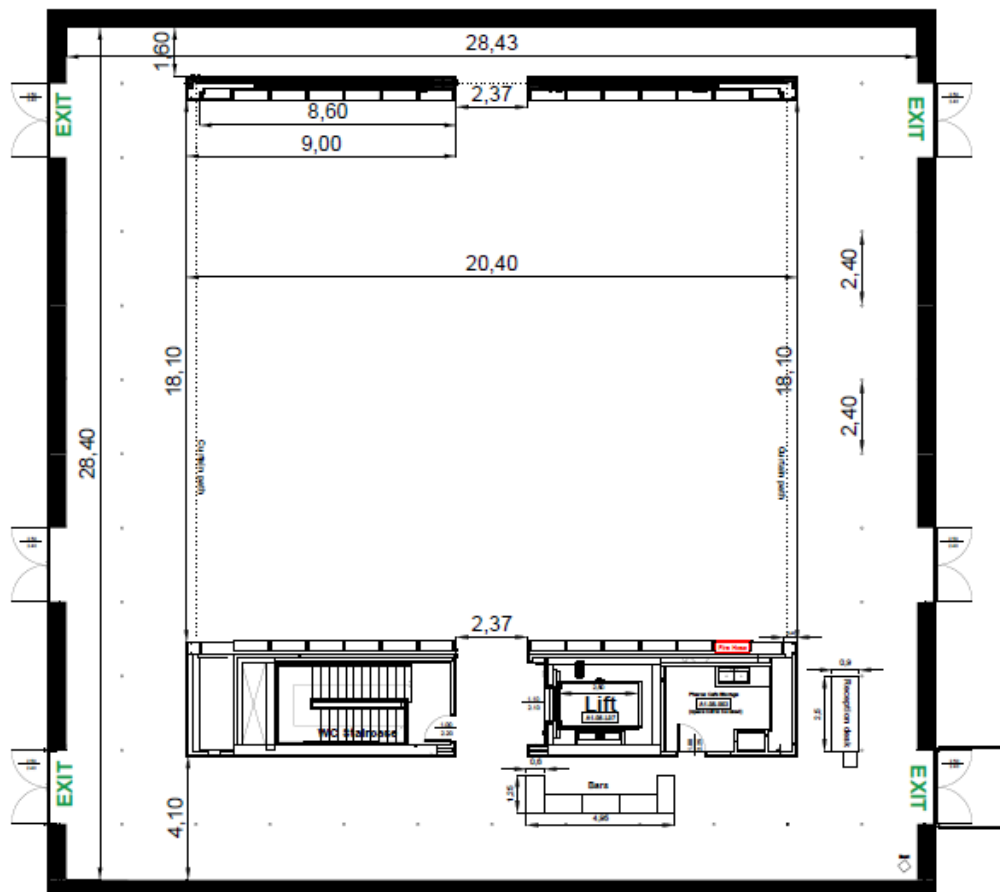
Damage caused by the Production/ Technical Support/ Catering Company, Sponsors etc., as well as by the attending audience/ guests/ staff etc. of the event, are recorded by SNFCC and/ or Engie at the end of the event and potential restoration falls exclusively on the event organizer

ATTACHMENT 2
Space layout





Φάρος (εξωτερικά)
Lighthouse (exterior)
728 m² (συνολική ή χωρική των χώρων)



Lighthouse interior - dimensions

ATTACHMENT 3
Freedom250 Branding Guidelines

(See separate attachment)

(Note: The Freedom250 Guidelines from the private-public partnership contain elements that differ from Department guidelines. When discrepancies exist, **Department guidance takes precedence**. When creating new materials with the Freedom250 logo, the Department's guidance is to brand items as the U.S. mission/post first, with the Freedom 250 logo as a secondary element.)

ATTACHMENT 4

Marketing & Communications Department

Guidelines for the correct usage of the Stavros Niarchos Foundation Cultural Center name

- When mentioned in any and all communication materials, please use the full name: apart from exceptional cases and after consultation for final approval.
- Please note that the organization's name is not Stavros Niarchos Foundation (SNF); this is a different entity, not to be confused with Stavros Niarchos Foundation Cultural Center (SNFCC).
- Prior to publicizing any communication materials, said material must be submitted to the SNFCC Marketing & Communications department for final approval.
- This commercial partnership scheme does not include the co-located cultural organizations, namely the National Library of Greece and the Greek National Opera. Consequently, there can be no mention of these two organizations. In addition, all communication materials should mention rental areas by name and not accompanied by the cultural organization where they are housed; e.g. Stavros Niarchos Hall at the Stavros Niarchos Foundation Cultural Center and NOT Stavros Niarchos Hall of the Greek National Opera at the Stavros Niarchos Foundation Cultural Center. Particularly for artistic events, there must be no connection (indirect or direct mention) to the institutions of the National Library of Greece and the Greek National Opera, and this applies to all communication materials, such as press releases, media interviews of artists, social media accounts and websites.
- Our logo may not be used, since the event is not organized by the SNFCC.
- In the event SNFCC photographic material is requested, it shall be provided upon consultation with the Marketing & Communications department of the SNFCC, and relevant photo & copyright credits shall be retained.
- For any reproduction of communication materials on social media platforms, only the official accounts of the Stavros Niarchos Foundation Cultural Center shall be

used on all applications, such as geolocation tag, mention, caption & hashtag. The official (or non-official) accounts of the co-located entities, namely the Greek National Opera and the National Library of Greece, may not be used or mentioned.

SNFCC social media handles: Facebook | Instagram | YouTube |

SECTION 2 - CONTRACT CLAUSES

52.212-4 CONTRACT TERMS AND CONDITIONS – COMMERCIAL ITEMS (NOV 2023) IS INCORPORATED BY REFERENCE. (SEE SF-1449, BLOCK 27A)

52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (JAN2025) (DEVIATION OCT2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

- (1) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).
- (2) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).
- (3) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).
- (4) [52.209-10](#), Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).
- (5) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) ([31 U.S.C. 3903](#) and [10 U.S.C. 3801](#)).
- (6) [52.233-3](#), Protest After Award (AUG 1996) ([31 U.S.C. 3553](#)).
- (7) [52.233-4](#), Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 ([19 U.S.C. 3805 note](#))).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

- (1) [52.203-6](#), Restrictions on Subcontractor Sales to the Government (JUN 2020), with *Alternate I* (NOV 2021) ([41 U.S.C. 4704](#) and [10 U.S.C. 4655](#)).

- __ (2) [52.203-13](#), Contractor Code of Business Ethics and Conduct (NOV 2021) ([41 U.S.C. 3509](#))).
- __ (3) [52.203-15](#), Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)
- X(4) [52.203-17](#), Contractor Employee Whistleblower Rights (NOV 2023) ([41 U.S.C. 4712](#)); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR [3.900\(a\)](#).
- __ (5) [52.204-10](#), Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) ([31 U.S.C. 6101 note](#)).
- __ (6) [Reserved].
- __ (7) [52.204-14](#), Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).
- __ (8) [52.204-15](#), Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).
- __ (9) [52.204-27](#), Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).
- __ (10) [52.204-28](#), Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) ([Pub. L. 115–390](#), title II).
- __ (11)
- (i) [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders—Prohibition. (DEC 2023) ([Pub. L. 115–390](#), title II).
- __ (ii) Alternate I (DEC 2023) of 52.204–30.
- X(12) [52.209-6](#), Protecting the Government’s Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment. (NOV 2021) ([31 U.S.C. 6101 note](#)).
- __ (13) [52.209-9](#), Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) ([41 U.S.C. 2313](#)).
- __ (14) [Reserved].
- __ (15) [52.219-3](#), Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) ([15 U.S.C. 657a](#)).
- __ (16) [52.219-4](#), Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) ([15 U.S.C. 657a](#)).
- __ (17) [Reserved]
- __ (18) (i) [52.219-6](#), Notice of Total Small Business Set-Aside (NOV 2020) ([15 U.S.C. 644](#)).
- __ (ii) Alternate I (MAR 2020) of [52.219-6](#).

- __ (19) (i) [52.219-7](#), Notice of Partial Small Business Set-Aside (NOV 2020) ([15 U.S.C. 644](#)).
- __ (ii) Alternate I (MAR 2020) of [52.219-7](#).
- __ (20) [52.219-8](#), Utilization of Small Business Concerns (FEB 2024) ([15 U.S.C. 637\(d\)\(2\)](#) and (3)).
- __ (21)
- (i) [52.219-9](#), Small Business Subcontracting Plan (SEP 2023) ([15 U.S.C. 637\(d\)\(4\)](#)).
- __ (ii) Alternate I (NOV 2016) of [52.219-9](#).
- __ (iii) Alternate II (NOV 2016) of [52.219-9](#).
- __ (iv) Alternate III (JUN 2020) of [52.219-9](#).
- __ (v) Alternate IV (SEP 2023) of [52.219-9](#).
- __ (22)
- (i) [52.219-13](#), Notice of Set-Aside of Orders (MAR 2020) ([15 U.S.C. 644\(r\)](#)).
- __ (ii) Alternate I (MAR 2020) of [52.219-13](#).
- __ (23) [52.219-14](#), Limitations on Subcontracting (OCT 2022) ([15 U.S.C. 637s](#)).
- __ (24) [52.219-16](#), Liquidated Damages—Subcontracting Plan (SEP 2021) ([15 U.S.C. 637\(d\)\(4\)\(F\)\(i\)](#)).
- __ (25) [52.219-27](#), Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) ([15 U.S.C. 657f](#)).
- __ (26)
- (i) [52.219-28](#), Post Award Small Business Program Representation (FEB 2024) ([15 U.S.C. 632\(a\)\(2\)](#)).
- __ (ii) Alternate I (MAR 2020) of [52.219-28](#).
- __ (27) [52.219-29](#), Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) ([15 U.S.C. 637\(m\)](#)).
- __ (28) [52.219-30](#), Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) ([15 U.S.C. 637\(m\)](#)).
- __ (29) [52.219-32](#), Orders Issued Directly Under Small Business Reserves (MAR 2020) ([15 U.S.C. 644\(r\)](#)).
- __ (30) [52.219-33](#), Nonmanufacturer Rule (SEP 2021) ([15U.S.C. 637\(a\)\(17\)](#)).
- __ (31) [52.222-3](#), Convict Labor (JUN 2003) (E.O.11755).
- X(32) [52.222-19](#), Child Labor-Cooperation with Authorities and Remedies (FEB 2024).
- __ (ii) Alternate I (FEB 1999) of [52.222-26](#).
- __ (35) (i) [52.222-35](#), Equal Opportunity for Veterans (JUN 2020) ([38 U.S.C. 4212](#)).

- __ (ii) Alternate I (JUL 2014) of [52.222-35](#).
- __ (36)(i) [52.222-36](#), Equal Opportunity for Workers with Disabilities (JUN 2020) ([29 U.S.C. 793](#)).
- __ (ii) Alternate I (JUL 2014) of [52.222-36](#).
- __ (37) [52.222-37](#), Employment Reports on Veterans (JUN 2020) ([38 U.S.C. 4212](#)).
- __ (38) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).
- X (39) (i) [52.222-50](#), Combating Trafficking in Persons (NOV 2021) ([22 U.S.C. chapter 78](#) and E.O. 13627).
- __ (ii) Alternate I (MAR 2015) of [52.222-50](#) ([22 U.S.C. chapter 78](#) and E.O. 13627).
- __ (40) [52.222-54](#), Employment Eligibility Verification (MAY 2022) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR [22.1803](#).)
- __ (41) (i) [52.223-9](#), Estimate of Percentage of Recovered Material Content for EPA–Designated Items (May 2008) ([42 U.S.C. 6962\(c\)\(3\)\(A\)\(ii\)](#)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- __ (ii) Alternate I (MAY 2008) of [52.223-9](#) ([42 U.S.C. 6962\(i\)\(2\)\(C\)](#)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- __ (42) [52.223-11](#), Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (Jun 2016) (E.O. 13693).
- __ (43) [52.223-12](#), Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (JUN 2016) (E.O. 13693).
- __ (44) (i) [52.223-13](#), Acquisition of EPEAT®-Registered Imaging Equipment (JUN 2014) (E.O.s 13423 and 13514).
- __ (ii) Alternate I (OCT 2015) of [52.223-13](#).
- __ (45) (i) [52.223-14](#), Acquisition of EPEAT®-Registered Televisions (JUN 2014) (E.O.s 13423 and 13514).
- __ (ii) Alternate I (Jun2014) of [52.223-14](#).
- __ (46) [52.223-15](#), Energy Efficiency in Energy-Consuming Products (MAY 2020) ([42 U.S.C. 8259b](#)).
- __ (47) (i) [52.223-16](#), Acquisition of EPEAT®-Registered Personal Computer Products (OCT 2015) (E.O.s 13423 and 13514).
- __ (ii) Alternate I (JUN 2014) of [52.223-16](#).
- X (48) [52.223-18](#), Encouraging Contractor Policies to Ban Text Messaging While Driving (JUN 2020) (E.O. 13513).
- __ (49) [52.223-20](#), Aerosols (JUN 2016) (E.O. 13693).
- __ (50) [52.223-21](#), Foams (Jun2016) (E.O. 13693).
- __ (51) (i) [52.224-3](#) Privacy Training (JAN 2017) (5 U.S.C. 552 a).

- __ (ii) Alternate I (JAN 2017) of [52.224-3](#).
- __ (52) (i) [52.225-1](#), Buy American-Supplies (OCT 2022) ([41 U.S.C. chapter 83](#)).
- __ (ii) Alternate I (OCT 2022) of [52.225-1](#).
- __ (53) (i) [52.225-3](#), Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) ([19 U.S.C. 3301 note](#), [19 U.S.C. 2112 note](#), [19 U.S.C. 3805 note](#), [19 U.S.C. 4001 note](#), 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.
- __ (ii) Alternate I [Reserved].
- __ (iii) Alternate II (DEC 2022) of [52.225-3](#).
- __ (iv) Alternate III (FEB 2024) of [52.225-3](#).
- __ (v) Alternate IV (Oct 2022) of [52.225-3](#).
- __ (54) [52.225-5](#), Trade Agreements (NOV 2023) ([19 U.S.C. 2501](#), *et seq.*, [19 U.S.C. 3301 note](#)).
- X (55) [52.225-13](#), Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- __ (56) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- __ (57) [52.226-4](#), Notice of Disaster or Emergency Area Set-Aside (Nov 2007) ([42 U.S.C. 5150](#)).
- __ (58) [52.226-5](#), Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov2007) ([42 U.S.C. 5150](#)).
- __ (59) [52.229-12](#), Tax on Certain Foreign Procurements (FEB 2021).
- X (60) [52.232-29](#), Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) ([41 U.S.C. 4505](#), [10 U.S.C. 3805](#)).
- __ (61) [52.232-30](#), Installment Payments for Commercial Products and Commercial Services (NOV 2021) ([41 U.S.C. 4505](#), [10 U.S.C. 3805](#)).
- X (62) [52.232-33](#), Payment by Electronic Funds Transfer-System for Award Management (OCT2018) ([31 U.S.C. 3332](#)).
- __ (63) [52.232-34](#), Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) ([31 U.S.C. 3332](#)).
- __ (64) [52.232-36](#), Payment by Third Party (MAY 2014) ([31 U.S.C. 3332](#)).
- __ (65) [52.239-1](#), Privacy or Security Safeguards (AUG 1996) ([5 U.S.C. 552a](#)).
- __ (66) [52.242-5](#), Payments to Small Business Subcontractors (JAN 2017) ([15 U.S.C. 637\(d\)\(13\)](#)).
- __ (67) (i) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) ([46 U.S.C. 55305](#) and [10 U.S.C. 2631](#)).

- ___(ii) Alternate I (APR 2003) of [52.247-64](#).
- ___(iii) Alternate II (Nov 2021) of [52.247-64](#).

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

- ___(1) [52.222-41](#), Service Contract Labor Standards (AUG 2018) ([41 U.S.C. chapter 67](#)).
- ___(2) [52.222-42](#), Statement of Equivalent Rates for Federal Hires (MAY 2014) ([29 U.S.C. 206](#) and [41 U.S.C. chapter 67](#)).
- ___(3) [52.222-43](#), Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) ([29 U.S.C. 206](#) and [41 U.S.C. chapter 67](#)).
- ___(4) [52.222-44](#), Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) ([29 U.S.C. 206](#) and [41 U.S.C. chapter 67](#)).
- ___(5) [52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) ([41 U.S.C. chapter 67](#)).
- ___(6) [52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) ([41 U.S.C. chapter 67](#)).
- ___(7) [52.222-55](#), Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).
- ___(8) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).
- ___(9) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) ([42 U.S.C. 1792](#)).

(d) *Comptroller General Examination of Record*. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR [2.101](#), on the date of award of this contract, and does not contain the clause at [52.215-2](#), Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart [4.7](#), Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)

(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) [52.203-13](#), Contractor Code of Business Ethics and Conduct (Nov 2021) ([41 U.S.C. 3509](#)).

(ii) [52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41 U.S.C. 4712](#)).

(iii) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(v) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

- (vi) [52.204-27](#), Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).
- (vii) (A) 52.204–30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (DEC 2023) ([Pub. L. 115–390](#), title II).
- (B) Alternate I (DEC 2023) of 52.204–30.
- (viii) [52.219-8](#), Utilization of Small Business Concerns (FEB 2024) ([15 U.S.C. 637\(d\)\(2\)](#) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR [19.702\(a\)](#) on the date of subcontract award, the subcontractor must include [52.219-8](#) in lower tier subcontracts that offer subcontracting opportunities.
- (x) [52.222-26](#), Equal Opportunity (SEP 2015) (E.O.11246).
- (xi) [52.222-35](#), Equal Opportunity for Veterans (JUN 2020) ([38 U.S.C. 4212](#)).
- (xii) [52.222-36](#), Equal Opportunity for Workers with Disabilities (JUN 2020) ([29 U.S.C. 793](#)).
- (xiii) [52.222-37](#), Employment Reports on Veterans (JUN 2020) ([38 U.S.C. 4212](#)).
- (xiv) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause [52.222-40](#).
- (xv) [52.222-41](#), Service Contract Labor Standards (AUG 2018) ([41 U.S.C. chapter 67](#)).
- (xvi) (A) [52.222-50](#), Combating Trafficking in Persons (NOV 2021) ([22 U.S.C. chapter 78](#) and E.O 13627).
- (B) Alternate I (MAR 2015) of [52.222-50](#) ([22 U.S.C. chapter 78](#) and E.O. 13627).
- (xvii) [52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) ([41 U.S.C. chapter 67](#)).
- (xviii) [52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) ([41 U.S.C. chapter 67](#)).
- (xix) [52.222-54](#), Employment Eligibility Verification (MAY 2022) (E.O. 12989).
- (xx) [52.222-55](#), Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).
- (xxi) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).
- (xxii)
- (A) [52.224-3](#), Privacy Training (Jan 2017) ([5 U.S.C. 552a](#)).
- (B) Alternate I (JAN 2017) of [52.224-3](#).

(xxiii) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) ([42 U.S.C. 1792](#)). Flow down required in accordance with paragraph (e) of FAR clause [52.226-6](#).

(xxv) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) ([31 U.S.C. 3903](#) and [10 U.S.C. 3801](#)). Flow down required in accordance with paragraph (c) of [52.232-40](#).

(xxvi) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) ([46 U.S.C. 55305](#) and [10 U.S.C. 2631](#)). Flow down required in accordance with paragraph (d) of FAR clause [52.247-64](#).

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

Alternate I (FEB 2000). As prescribed in [12.301](#) (b)(4)(i), delete paragraph (d) from the basic clause, redesignate paragraph (e) as paragraph (d), and revise the reference to "paragraphs (a), (b), (c), or (d) of this clause" in the redesignated paragraph (d) to read "paragraphs (a), (b), and (c) of this clause".

Alternate II (FEB 2024) . As prescribed in [12.301](#) (b)(4)(ii), substitute the following paragraphs (d)(1) and (e)(1) for paragraphs (d)(1) and (e)(1) of the basic clause as follows:

(d)(1) The Comptroller General of the United States, an appropriate Inspector General appointed under section 3 or 8 G of the Inspector General Act of 1978 ([5 U.S.C. App.](#)), or an authorized representative of either of the foregoing officials shall have access to and right to—

(i) Examine any of the Contractor's or any subcontractors' records that pertain to, and involve transactions relating to, this contract; and

(ii) Interview any officer or employee regarding such transactions.

(e)(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), and (c), of this clause, the Contractor is not required to flow down any FAR clause in a subcontract for commercial products or commercial services, other than—

(i) *Paragraph (d) of this clause*. This paragraph flows down to all subcontracts, except the authority of the Inspector General under paragraph (d)(1)(ii) does not flow down; and

(ii) *Those clauses listed in this paragraph (e)(1)*. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

- (A) [52.203-13](#), Contractor Code of Business Ethics and Conduct (NOV 2021) ([41 U.S.C. 3509](#)).
- (B) [52.203-15](#), Whistleblower Protections Under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5).
- (C) [52.203-17](#), Contractor Employee Whistleblower Rights (NOV 2023) ([41 U.S.C. 4712](#)).
- (D) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).
- (E) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).
- (F) [52.204-27](#), Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).
- (G) __ (*I*) [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders—Prohibition. (DEC 2023) ([Pub. L. 115-390](#), title II).
__ (2) Alternate I (DEC 2023) [52.204-30](#).
- (H) [52.219-8](#), Utilization of Small Business Concerns (FEB 2024) ([15 U.S.C. 637\(d\)\(2\) and \(3\)](#)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR [19.702\(a\)](#) on the date of subcontract award, the subcontractor must include [52.219-8](#) in lower tier subcontracts that offer subcontracting opportunities.
- (I) [52.222-21](#), Prohibition of Segregated Facilities (APR 2015).
- (J) [52.222-26](#), Equal Opportunity (SEP 2016) (E.O. 11246).
- (K) [52.222-35](#), Equal Opportunity for Veterans (JUN 2020) ([38 U.S.C. 4212](#)).
- (L) [52.222-36](#), Equal Opportunity for Workers with Disabilities (JUN 2020) ([29 U.S.C. 793](#)).
- (M) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause [52.222-40](#).
- (N) [52.222-41](#), Service Contract Labor Standards (AUG 2018) ([41 U.S.C. chapter 67](#)).
- (O) __ (*I*) [52.222-50](#), Combating Trafficking in Persons (NOV 2021) ([22 U.S.C. chapter 78](#) and E.O 13627).
__ (2) Alternate I (MAR 2015) of [52.222-50](#) ([22 U.S.C. chapter 78](#) and E.O. 13627).
- (P) [52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) ([41 U.S.C. chapter 67](#)).

- (Q) [52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) ([41 U.S.C. chapter 67](#)).
- (R) [52.222-54](#), Employment Eligibility Verification (MAY 2022) (Executive Order 12989).
- (S) [52.222-55](#), Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).
- (T) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).
- (U) (1) [52.224-3](#), Privacy Training (JAN 2017) ([5 U.S.C. 552a](#)).
- (2) Alternate I (JAN 2017) of [52.224-3](#).
- (V) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- (W) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations. (JUN 2020) ([42 U.S.C. 1792](#)). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.
- (X) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) ([31 U.S.C. 3903](#) and [10 U.S.C. 3801](#)). Flow down required in accordance with paragraph (c) of [52.232-40](#).
- (Y) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) ([46 U.S.C. 55305](#) and [10 U.S.C. 2631](#)). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

**ADDENDUM TO CONTRACT CLAUSES
FAR AND DOSAR CLAUSES NOT PRESCRIBED IN PART 12**

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. In addition, the full text of a clause may be accessed electronically at: [Acquisition.gov](https://www.acquisition.gov) this address is subject to change.

If the Federal Acquisition Regulation (FAR) is not available at the location indicated above, use the Department of State Acquisition website at [e-CFR](https://e-cfr.com) to see the links to the FAR. You may also use an Internet “search engine” (for example, Google, Yahoo or Excite) to obtain the latest location of the most current FAR.

THE FOLLOWING FEDERAL ACQUISITION REGULATIONS (FAR)
CLAUSES ARE INCORPORATED BY REFERENCE:

CLAUSE

TITLE AND DATE

52.203-17 CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS AND
REQUIREMENT TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS
(JUN 2020)

52.204-13 SYSTEM FOR AWARD MANAGEMENT MAINTENANCE (OCT
2018)

52.204-18 COMMERCIAL AND GOVERNMENT ENTITY CODE
MAINTENANCE (AUG 2020)

52.204-25 PROHIBITION ON CONTRACTING FOR CERTAIN
TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR
EQUIPMENT (NOV 2021)

52.204-27 PROHIBITION ON A BYTEDANCE COVERED
APPLICATION (JUN 2023)

52.225-14 INCONSISTENCY BETWEEN ENGLISH VERSION AND
TRANSLATION OF CONTRACT (FEB 2000)

52.229-6 FOREIGN FIXED PRICE CONTRACTS (FEB 2013)

52.232-39 UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS
(JUNE 2013)

52.232-40 PROVIDING ACCELERATED PAYMENTS TO SMALL
BUSINESS SUBCONTRACTORS (MAR 2023)

52.244-6 SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND
COMMERCIAL SERVICES (JAN2025) (DEVIATION FEB2025)

THE FOLLOWING DOSAR CLAUSES ARE PROVIDED IN FULL TEXT:

652.215-70 EXAMINATION OF RECORDS

(a) With respect to matters related to this contract or a subcontract hereunder, the Department of State Office of the Inspector General, or an authorized representative, shall have upon request:

(1) Complete, prompt, and free access to all Contractor and Subcontractor files (in any format), documents, records, data, premises, and employees, except as limited by law; and

(2) The right to interview any current Contractor and Subcontractor personnel, individually and directly, with respect to such matters.

(b) This clause may not be construed to require the contractor or any subcontractor to create or maintain any record that the contractor or subcontractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(c) The Contractor shall insert a clause containing all the terms of this clause, including this [paragraph \(c\)](#), in all subcontracts under this contract other than acquisitions described in Federal Acquisition Regulation 15.209(b)(1).

652.229-70 EXCISE TAX EXEMPTION STATEMENT FOR CONTRACTORS
WITHIN THE UNITED STATES (JUL 1988)

This is to certify that the item(s) covered by this contract is/are for export solely for the use of the U.S. Foreign Service Post identified in the contract schedule. The Contractor shall use a photocopy of this contract as evidence of intent to export. Final proof of exportation may be obtained from the agent handling the shipment. Such proof shall be accepted in lieu of payment of excise tax.

(End of clause)

652.232-70 PAYMENT SCHEDULE AND INVOICE SUBMISSION (FIXED-PRICE) (AUG 1999)

(a) General. The Government shall pay the Contractor as full compensation for all work required, performed, and accepted under this contract the firm fixed-price stated in this contract.

(b) Invoice Submission. The Contractor shall submit invoices in an original and one copy to the office identified in Block 18b of the SF-1449. To constitute a proper invoice, the invoice shall include all the items required by FAR 32.905(e).

The Contractor shall show Value Added Tax (VAT) as a separate item on invoices submitted for payment.

(c) Contractor Remittance Address. The Government will make payment to the contractor's address stated on the cover page of this contract, unless a separate remittance address is shown below:

(End of clause)

DOSAR 652.239-801 DISCLOSURE OF AI USE CLAUSE (DEVIATION) (SEP 2025)

(a) *Definitions.* As used in this clause:

Artificial Intelligence (AI): The term "artificial intelligence" has the meaning provided in Section 238(g) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019.

i. This definition of AI encompasses, but is not limited to, the AI technical subfields of machine learning (including deep learning as well as supervised, unsupervised, and semi-supervised approaches), reinforcement learning, transfer learning, and generative AI.

ii. This definition of AI does not include robotic process automation or other systems whose behavior is defined only by human-defined rules or that learn solely by repeating an observed practice exactly as it was conducted.

iii. For this definition, no system should be considered too simple to qualify as covered AI due to a lack of technical complexity (e.g., the smaller number of parameters in a model, the type of model, or the amount of data used for training purposes).

iv. This definition includes systems that are fully autonomous, partially autonomous, and not autonomous, and it includes systems that operate both with and without human oversight.

(b) Disclosure of AI Use in Contract Performance. When the Contractor or any of its subcontractors, vendors, or agents intends to incorporate AI into the performance of the contract, the Contractor shall provide the following disclosures in its offer:

Disclose the intended use of AI and provide a description of the AI system or capability and its purpose within the contract scope; specify whether the system was developed internally, acquired from a third party, or is publicly/commercially available; indicate if the AI system will process PII or be used in ways that may affect privacy, civil rights, safety, or public interaction; detail the governance, oversight, and human-in-the-loop mechanisms to be applied; and describe any applicable testing, evaluation, risk management, or bias mitigation measures that have been or will be implemented.

These disclosures must be updated promptly to the Contracting Officer during the period of performance upon any new use of AI or significant material change to the existing AI capability, its functionality, its use case, or its data inputs/outputs during the life of the contract.

The Government reserves the right to review the proposed AI use, request additional safeguards or controls, and/or disallow its use if it is deemed inconsistent with agency policy, legal requirements, or federal AI governance standards.

(End of Clause)

DOSAR 652.239-802 VENDOR LOCK-IN PROVISION (DEVIATION) (SEP 2025)

(a) Definitions. As used in this provision-

Vendor Lock-In-The term vendor lock-in refers to a situation in which the Government's ability to operate, maintain, or transition a system, data, software, or related capability is limited due to dependency on proprietary technologies, formats, or services controlled by a specific contractor. This includes restrictions on access to models, training data, source code, documentation, or technical interfaces that would prevent or burden the Government's ability to transition to alternative solutions or providers.

(b) Vendor Lock-In Mitigation. The Government requires that offers submitted in response to this solicitation that incorporate AI technologies include terms that reduce vendor lock-in risk, such as requirements regarding knowledge transfer, clear data and model portability practices, clear licensing terms, and pricing transparency.

This applies to all prime contractors and subcontractors performing AI-related work under this contract and must be flowed down accordingly.

DOSAR 652.239-803 ARTIFICIAL INTELLIGENCE CLAUSE (DEVIATION) (SEPT 2025)

Artificial Intelligence (Sep 2025)

(a) Definitions. As used in this clause Artificial Intelligence (AI): The term "artificial intelligence" has the meaning provided in Section 238(g) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019.

- i. This definition of AI encompasses, but is not limited to, the AI technical subfields of machine learning (including deep learning as well as supervised, unsupervised, and semi-supervised approaches), reinforcement learning, transfer learning, and generative AI.
- ii. This definition of AI does not include robotic process automation or other systems whose behavior is defined only by human-defined rules or that learn solely by repeating an observed practice exactly as it was conducted.
- iii. For this definition, no system should be considered too simple to qualify as covered AI due to a lack of technical complexity (e.g., the smaller number of parameters in a model, the type of model, or the amount of data used for training purposes).
- iv. This definition includes systems that are fully autonomous, partially autonomous, and not autonomous, and it includes systems that operate both with and without human oversight.

AI Incident: The term "AI incident" refers to a violation or immediate threat of violation of AI policies, acceptable use policies for the AI system or service, or standard AI practices. Examples of AI incidents include:

- i. An AI system malfunctions due to a bug or development flaw, creating a potential harm to an individual's rights or safety, a potential harm to property, or a potential disruption to the management and operation of critical infrastructure;
- ii. An AI service generates harmful, false, inappropriate, or erroneous outputs, impacting or potentially impacting individuals or a group of people; and

iii. A user employs an AI system in ways that violate ethical guidelines or Department acceptable use policies, such as using a facial recognition system for unauthorized surveillance.

Non-Public Information-Non-Public Information refers to any data, materials, or knowledge that is not publicly available or accessible, including but not limited to proprietary business information, technical data, personally identifiable information (PII), trade secrets, internal communications, and any information protected under applicable laws and regulations. This information must be handled in accordance with all relevant international, federal, and local privacy and security requirements applicable to the global scope of this contract.

Significant Modification-The term significant modification refers to an update to an AI application or to the conditions or context in which it is used, such as through changing its functionality, underlying structure, or performance, that meaningfully alters the AI's impact, rendering prior evaluations, training, or documentation misleading to users, overseers, or individuals affected by the system. This includes significantly changing the context, scope, or intended purpose in which the AI is used. In case there is any doubt or ambiguity as to

whether an event constitutes a significant modification for purposes of this clause, the contractor will present the issue to the contracting officer, whose decision on the matter will be final.

(b) **Use of Government Data and AI Outputs.** The Contractor shall ensure that its employees, subcontractors, affiliates, and agents do not use any nonpublic information, data, or content provided by the Government under this contract—whether inputted by the agency into an AI-enabled system or generated as an output of such a system—to train, fine-tune, or improve any publicly or commercially available AI system or model, including but not limited to foundation models, large language models (LLMs), or general-purpose AI tools without written authorization from the Contracting Officer in consultation with the AI Investment Management Group (AIM Group).

(c) **Privacy Compliance in AI Systems Involving Personally Identifiable Information (PII).** The Contractor shall ensure full compliance with all applicable Federal privacy laws, regulations, executive orders, and agency-specific privacy policies when developing, deploying, operating, or maintaining any AI system or service under this contract that will create, collect, use, process, store, maintain, disseminate, disclose, or dispose of Federal information containing personally identifiable information.

1. **Incident Reporting.** During the performance of this contract, the Contractor must comply with 12 FAM 550 Security Incident Program. Additionally, the Contractor shall report all AI incidents to CIRT@state.gov. CIRT will review and assess to

determine if the reported event is a potential cybersecurity and/or AI incident. Based on the cause of the event, nature and scope of the potential threat, and other operational impacts, the event may be classified as a cybersecurity and/or serious AI incident and escalated for subsequent reporting, analysis, and the coordination of incident response actions, which will require the Contractor to provide additional details regarding the reported incident. In all AI incidents, contractors must notify the Responsible AI Official via RAIO@state.gov and follow Incident Response Processes. In instances when PII is involved in actual or suspected AI incidents, contractors are also responsible for adhering to 5 FAM 465. Contractors must report the AI incident to the Privacy Office using the Department's Breach Incident Form (access to this online form will be provided after contract award) or contacting PRVIncidents@state.gov

2. The obligations in this clause apply to all prime contractors, subcontractors, vendors, and third parties who handle PII on behalf of the Contractor and must be flowed down to all relevant subcontracts.

(d) Compliance with Minimum Risk Management Standards The Contractor shall comply with the minimum AI risk management practices for high-impact use cases as required by OMB M-25-21. These include but are not limited to the following:

1. Applying the NIST AI Risk Management Framework;
2. Supporting agency-led impact assessments;
3. Ensuring transparency of system design, data lineage, and decision logic.

(e) Evaluation and Monitoring of AI System Performance. The Contractor shall allow the agency to perform quarterly or biannual evaluations of AI system performance, risks, and effectiveness.

1. The Government anticipates that independent testing will use internal datasets to reflect real-world operational use cases as closely as possible. These datasets:

- Will remain confidential and will not be shared with the Contractor; and
- Will be used solely for the purpose of evaluating system performance.

2. Within 10 business days of the Government's notice to conduct independent testing, the Contractor shall provide the agency with access to necessary documentation, system resources and operational time. If testing is performed by the Contractor, the Government reserves the right to: -

- Independently reproduce or verify test results; and
- Review and access all test methodologies and outcomes to ensure transparency and accuracy.

3. Within 10 business days of a Government request, the Contractor shall provide detailed documentation of internal testing procedures and collaborate with the agency to ensure alignment with evaluation objectives. The Government anticipates issuing these requests no more than two times per year. The Contractor agrees that testing results and methodologies may be used internally by the agency for performance assessments and operational improvements, while safeguarding proprietary information and intellectual property.

(f) Performance Monitoring and Remediation Requirements. The Contractor shall regularly:

1. Monitor the AI system's performance in operational environments;
2. Identify and rectify unacceptable system behavior;
3. Ensure any new AI version meets predefined performance thresholds before deployment;
4. Rollback to a previous version if performance degradation is detected.

(g) New AI Feature Integration Notification. The Contractor shall provide written notification to the Contracting Officer or their designated representative at least ten business days before implementing any of the following proposed changes to High-Impact AI use cases, or when functionality newly meets the High-Impact threshold:

- Material changes to the AI system;
- Addition of new AI algorithms or features;
- Significant Modifications to underlying models or data sources.

The notification shall include:

- A clear description of the proposed change;
- Anticipated impacts on system performance, security, or compliance;
- Risk mitigation strategies; and
- Documentation demonstrating continued adherence to applicable federal standards, including OMB M-25-21 and M-25-22.

The Government will review the proposed changes to ensure alignment with operational requirements, compliance standards, and risk management protocols. Approval or disapproval by a designated representative to the Contracting Officer will be communicated prior to deployment.

(h) Maximize Use of American-Made AI. The Vendor shall disclose whether the Artificial Intelligence (AI) system provided under this Agreement was developed and is maintained entirely within the United States. If any portion of the AI system was developed or is maintained outside the United States, the Vendor shall disclose

the foreign jurisdiction(s) involved and describe the nature and extent of such development or maintenance activities. This disclosure shall be provided to ensure compliance with federal policies governing AI systems and applicable. National security requirements pursuant to OMB Memorandum M-25-22, Section 3(c).

652.242-70 CONTRACTING OFFICER'S REPRESENTATIVE (COR) (AUG 1999)

(a) The Contracting Officer may designate in writing one or more Government employees, by name or position title, to take action for the Contracting Officer under this contract. Each designee shall be identified as a Contracting Officer's Representative (COR). Such designation(s) shall specify the scope and limitations of the authority so delegated; provided that the designee shall not change the terms or conditions of the contract, unless the COR is a warranted Contracting Officer and this authority is delegated in the designation.

(b) The COR for this contract is _____ (to be provided after award)

652.242-73 AUTHORIZATION AND PERFORMANCE (AUG 1999)

(a) The Contractor warrants the following:

(1) That it has obtained authorization to operate and do business in the country or countries in which this contract will be performed;

(2) That it has obtained all necessary licenses and permits required to perform this contract; and,

(3) That it shall comply fully with all laws, decrees, labor standards, and regulations of said country or countries during the performance of this contract.

(b) If the party actually performing the work will be a subcontractor or joint venture partner, then such subcontractor or joint venture partner agrees to the requirements of paragraph (a) of this clause.

SECTION 3 - SOLICITATION PROVISIONS

Notice to offerors. Quotes that are submitted in electronic format must not be larger than 25 MB in size and may only contain files and attachments in .zip and .pdf formats. The Department server may block other formats, files, and attachments, including external links to Cloud storage, i.e., DropBox and Google Drive. If the file size should exceed 25MB, the submission must be made in separate files and attached to separate emails with less than 25MB each.

52.212-1 INSTRUCTIONS TO OFFERORS -- COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAR 2023) IS INCORPORATED BY REFERENCE (SEE SF-1449, BLOCK 27A)

ADDENDUM TO 52.212-1

A. Summary of Instructions. Offerors shall submit proposals in two separate volumes. Volume II shall contain no pricing information.

VOLUME I. PRICE PROPOSAL

1) **Completed SF-1449 and Section 1.** A completed solicitation, in which the SF-1449 cover page (Blocks 12, 17, 19-24, and 30 as appropriate), and Section 1 has been filled out. The offeror must ensure that the SF-1449 block 30 is signed.

2) **Representations and Certifications.** A completed Section 5 of the Solicitation must be submitted with the offer. The offeror shall complete FAR Clauses 52.204-24, 52.204-26 included in Section 5.

3) **Proof of System for Award Management Registration (SAM).** The offeror shall provide proof of SAM registration to include the SAM UEI number. The offeror is required to be registered in SAM when submitting an offer or quotation and shall continue to be registered until time of award, during performance, and through final payment of any contract, basic agreement, basic ordering agreement, or blanket purchasing agreement resulting from this solicitation.

4) **Pricing.** Clear pricing structure for the proposed services. The offeror shall submit a detailed budget plan and provide visibility into anticipated event-related costs and Government-incurred expenditures to support planning, oversight, and decision-making.

5) **Services Offered.** Detailed service offerings in accordance with the Performance Work Statement (PWS).

VOLUME II. TECHNICAL PROPOSAL

- (1) Name of a Project Manager (or other liaison to the U.S. Embassy) who understands written and spoken English;
- (2) Name of Event Lead who will serve as the main liaison between the Embassy and the coordinators.
- (3) Evidence that the offeror/quoter operates an established business with a permanent address and telephone listing in Greece.
- (4) The offeror must demonstrate experience in managing high-level diplomatic or corporate events with attendance exceeding 2,500 guests.
- (5) List of clients over the past 3 years, demonstrating prior experience with relevant past performance information and references (provide dates of contracts, places of performance, value of contracts, contact names, telephone and email addresses). If the offeror has not performed comparable services in Greece, then the offeror shall provide its international experience. Offerors are advised that the past performance information requested above may be discussed with the client's contact person. In addition, the client's contact person may be asked to comment on the offeror's:
 - Quality of services provided under the contract;
 - Compliance with contract terms and conditions;
 - Effectiveness of management;
 - Willingness to cooperate with and assist the customer in routine matters, and when confronted by unexpected difficulties; and
 - Business integrity / business conduct.

The Government will use past performance information primarily to assess an offeror's capability to meet the solicitation performance requirements, including the relevance and successful performance of the offeror's work experience. The Government may also use this data to evaluate the credibility of the offeror's proposal. In addition, the Contracting Officer may use past performance information in making a determination of responsibility.

(6) Evidence that the offeror/quoter can provide the necessary personnel, equipment, and financial resources needed to perform the work;

(7) The offeror shall address its plan to obtain all licenses and permits required by local law (see DOSAR 652.242-73 in Section 2). If offeror already possesses the locally required licenses and permits, a copy shall be provided.

(8) The offeror's strategic plan for all services to include but not limited to:

- A work plan taking into account all work elements in Section 1, Performance Work Statement.
- Identify types and quantities of equipment, supplies and materials required for performance of services under this contract. Identify if the offeror already possesses the listed items and their condition for suitability and if not already possessed or inadequate for use how and when the items will be obtained. Include details of all proposed items.
- Plan of ensuring quality of services including but not limited to contract administration and oversight.
- Conceptual Approach: A narrative description outlining the proposed décor theme. The offeror may include images to convey the "look and feel".
- Site Operations Plan: A description of how the offeror will manage all operations.
- Electricity requirements: A full list of electrical equipment and electricity requirements.

(9) Insurance. If insurance is required by the solicitation, a copy of the Certificate of Insurance(s), or (2) a statement that the Contractor will get the required insurance, and the name of the insurance provider to be used.

ADDENDUM TO SOLICITATION PROVISIONS
FAR AND DOSAR PROVISIONS NOT PRESCRIBED IN PART 12

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE
(FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. In addition, the full text of a clause may be accessed electronically at [Acquisition.gov](https://www.acquisition.gov) this address is subject to change.

If the Federal Acquisition Regulation (FAR) is not available at the location indicated above, use the Department of State Acquisition website at [e-CFR](https://e-cfr.gov) to see the links to the FAR. You may also use an Internet “search engine” (for example, Google, Yahoo or Excite) to obtain the latest location of the most current FAR.

THE FOLLOWING FEDERAL ACQUISITION REGULATION
SOLICITATION PROVISIONS ARE INCORPORATED BY REFERENCE:

PROVISION TITLE AND DATE

52.204-7 SYSTEM FOR AWARD MANAGEMENT (OCT 2018)
52.204-16 COMMERCIAL AND GOVERNMENT ENTITY CODE
REPORTING (AUG 2020)
52.211-1 AVAILABILITY OF SPECIFICATIONS LISTED IN THE GSA
INDEX OF FEDERAL SPECIFICATIONS, STANDARDS AND
COMMERCIAL ITEM DESCRIPTIONS, FPMR PART 101-29 (SEP 2023)
52.212-1 INSTRUCTIONS TO OFFERORS -- COMMERCIAL PRODUCTS
AND COMMERCIAL SERVICES (SEP 2023)
52.214-34 SUBMISSION OF OFFERS IN THE ENGLISH LANGUAGE (APR
1991)

52.237-1 SITE VISIT (APR 1984)

The site visit will be held on April 17, 2026, at 10.00 pm (local time) at the Stavros Niarchos Foundation Cultural Center (SNFCC).

Prospective offerors/quoters should submit by email to AthProcurement@state.gov no later than 12.00 pm on April 16, 2026, the names of participants.

Participants may bring written questions to the site visit/pre-proposal conference. If the answer requires research, there is no guarantee that the question will be answered at that visit. Remarks and explanations shall not qualify the terms of the solicitation, and no statements made by the Government representatives shall be considered a change to the solicitation unless a written amendment is issued.

THE FOLLOWING DOSAR PROVISION(S) IS/ARE PROVIDED IN FULL
TEXT:

652.206-70 ADVOCATE FOR COMPETITION/OMBUDSMAN (FEB 2015)

(a) The Department of State's Advocate for Competition is responsible for assisting industry in removing restrictive requirements from Department of State solicitations and removing barriers to full and open competition and use of commercial items. If such a solicitation is considered competitively restrictive or does not appear properly conducive to competition and commercial practices, potential offerors are encouraged first to contact the contracting office for the solicitation. If concerns remain unresolved, contact:

(1) For solicitations issued by the Office of Acquisition Management (A/LM/AQM) or a Regional Procurement Support Office, the A/LM/AQM Advocate for Competition, at AQMCompetitionAdvocate@state.gov.

(2) For all others, the Department of State Advocate for Competition at cat@state.gov.

(b) The Department of State's Acquisition Ombudsman has been appointed to hear concerns from potential offerors and contractors during the pre-award and post-award phases of this acquisition. The role of the ombudsman is not to diminish the authority of the contracting officer, the Technical Evaluation Panel or Source Evaluation Board, or the selection official. The purpose of the ombudsman is to facilitate the communication of concerns, issues, disagreements, and recommendations of interested parties to the appropriate Government personnel, and work to resolve them. When requested and appropriate, the ombudsman will maintain strict confidentiality as to the source of the concern. The ombudsman does not participate in the evaluation of proposals, the source selection process, or the adjudication of formal contract disputes. Interested parties are invited to contact the contracting activity ombudsman, Attn: Management Counselor, at Phone No. +30 210 693-4754 or AthProcurement@state.gov. For an American

Embassy or overseas post, refer to the numbers below for the Department Acquisition Ombudsman. Concerns, issues, disagreements, and recommendations which cannot be resolved at a contracting activity level may be referred to the Department of State Acquisition Ombudsman at (703) 516-1696 or write to: Department of State, Acquisition Ombudsman, Office of the Procurement Executive (A/OPE), Suite 1060, SA-15, Washington, DC 20520.

(End of provision)

SECTION 4 - EVALUATION FACTORS

BASIS FOR AWARD

- The Government will award a contract only to an offeror whose technical proposal establishes that it can meet the needs of the Government. The proposed price or cost must be considered reasonable and must reflect the proposed technical approach. The Government will evaluate proposals first from a technical standpoint without regard to proposed prices. The Government may award a contract to other than the lowest priced offeror. If two or more offers are considered technically equivalent, price or cost may become of primary importance in determining the proposal most advantageous to the Government.
- The quoter shall submit a completed solicitation, including Sections 1 and 5.
- The Government reserves the right to reject proposals that are unreasonably low or high in price.
- The Government reserves the right to reject an offer if the offeror fails to submit any of the required documents required by Section 3.
- The Government will determine acceptability by assessing the offeror's compliance with the terms of the RFQ to include the technical information required by Section 3.
- The Government will determine contractor responsibility by analyzing whether the apparent successful offeror complies with the requirements of FAR 9.1, including:

Adequate financial resources or the ability to obtain them;

Ability to comply with the required performance period, taking into consideration all existing commercial and governmental business commitments;

Satisfactory record of integrity and business ethics;

Necessary organization, experience, and skills or the ability to obtain them;

Necessary equipment and facilities or the ability to obtain them; and

Be otherwise qualified and eligible to receive an award under applicable laws and regulations.

EVALUATION CRITERIA

Best Value Evaluation Criteria Structure:

- Factor I: Technical Capability/Approach (Most Important): Evaluates the understanding of requirements, staffing plans, and technical solutions.
- Factor II: Past Performance (Significant Importance): Assesses relevant experience and successful performance on similar projects.
- Factor III: Key Personnel (Important): Evaluates the qualifications and expertise of key staff.
- Factor IV: Price (Lowest Importance): Evaluates total cost, which may increase in importance as technical approaches become more equal.

AWARD WITHOUT DISCUSSIONS

In accordance with FAR provision 52.215-1, offerors are reminded that the Government may award this contract based on initial proposals and without holding discussions, pursuant to FAR 15.305(a).

SECTION 5 - REPRESENTATIONS AND CERTIFICATIONS

52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (OCT 2025).

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at [52.204-26](#), Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at [52.212-3](#), Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at [52.204-26](#), or in paragraph (v)(2)(ii) of the provision at [52.212-3](#).

(a) *Definitions.* As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.*

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) *Representation.* The Offeror represents that—

(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.*

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.
(End of provision)

52.204-26 COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (OCT 2020)

(a) *Definitions.* As used in this provision, “covered telecommunications equipment or services” and “reasonable inquiry” have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for “covered telecommunications equipment or services”.

(c) *Representations.* (1) The Offeror represents that it [] does, [] does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the Offeror represents that it [] does, [] does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

52.212-3 OFFEROR REPRESENTATIONS AND CERTIFICATIONS— COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (May 2024) (Deviation FEB2025)

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through <https://www.sam.gov>. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (v) of this provision.

(a) *Definitions.* As used in this provision—

Covered telecommunications equipment or services has the meaning provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with [13 CFR part 127](#), and the concern is certified by SBA or an approved third-party certifier in accordance with [13 CFR 127.300](#). It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service—

- (1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or
- (2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under [6 U.S.C. 395\(b\)](#), applied in accordance with the rules and definitions of [6 U.S.C. 395\(c\)](#).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except—

- (1) PSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the

finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended."Sensitive technology"—

Sensitive technology—

- (1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—
 - (i) To restrict the free flow of unbiased information in Iran; or
 - (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and
- (2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern—

- (1)
 - (i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less

than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart [19.14](#)).

(3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in [38 U.S.C. 101](#)(2), with a disability that is service connected, as defined in [38 U.S.C. 101](#)(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran. *Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program* means an SDVOSB concern that—

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program. *Small business concern*—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in [13 CFR part 121](#) and size standards in this solicitation.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that—

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by—

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned—

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern—

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women

Women-owned small business concern means a small business concern—

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB

Program (in accordance with [13 CFR part 127](#)), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with [13 CFR 127.300](#).

(b)

(1) *Annual Representations and Certifications.* Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR [52.212-3](#), Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR [4.1201](#)), except for paragraphs _____. *[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer. Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]*

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied [part 19](#) in accordance with [19.000\(b\)\(1\)\(ii\)](#). Check all that apply.

(1) *Small business concern.* The offeror represents as part of its offer that—

(i) It ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of [13 CFR 121.103\(h\)](#) and [13 CFR 125.8\(a\)](#) and [\(b\)](#).

[The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(2) *Veteran-owned small business concern.* *[Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(3) *SDVOSB concern.* *[Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.]*

The offeror represents that it ☐ is, ☐ is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB Program.*

The offeror represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402.

[Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.] [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(5) *Small disadvantaged business concern.* *[Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents that it ☐ is, ☐ is not a small disadvantaged business concern as defined in [13 CFR 124.1002](#).

(6) *Women-owned small business concern.* *[Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents that it ☐ is, ☐ is not a women-owned small business concern.

(7) *WOSB joint venture eligible under the WOSB Program.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of [13 CFR 127.506\(a\)](#) through [\(c\)](#). *[The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]*

(8) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of [13 CFR 127.506\(a\)](#) through [\(c\)](#). *[The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]*

Note to paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) *Women-owned business concern (other than small business concern).* *[Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents that it ☐ is a women-owned business concern.

(10) *Tie bid priority for labor surplus area concerns.* If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price: _____

(11) *HUBZone small business concern.* *[Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]*

The offeror represents, as part of its offer, that—

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see [13 CFR 126.200\(e\)\(1\)](#)); and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of [13 CFR 126.616\(a\)](#) through [\(c\)](#). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* .] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) Representations required to implement provisions of Executive Order 12466-

(1) Previous contracts and compliance. The offeror represents that-

(i) It ☐ has, ☐ has not participated in a previous contract or subcontract subject to the Equal Opportunity clause of this solicitation; and

(ii) It ☐ has, ☐ has not filed all required compliance reports.

(2) *Affirmative Action Compliance.* The offeror represents that-

(i) It ☐ has developed and has on file, ☐ has not developed and does not have on file, at each establishment, affirmative action programs required by rules and regulations of the Secretary of Labor (41 CFR parts 60-1 and 60-2), or

(ii) It ☐ has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.

(e) *Certification Regarding Payments to Influence Federal Transactions*

(31 <http://uscode.house.gov/> U.S.C. 1352). (Applies only if the contract is expected to exceed \$150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) *Buy American Certificate.* (Applies only if the clause at Federal Acquisition Regulation (FAR) [52.225-1](#), Buy American-Supplies, is included in this solicitation.)

(1)

(i) The Offeror certifies that each end product, except those listed in paragraph

(f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those

foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

[List as necessary]

(3) Domestic end products containing a critical component:

Line Item No. _____

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR [part 25](#).

(g)

(1) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate*. (Applies only if the clause at FAR [52.225-3](#), Buy American-Free Trade Agreements-Israeli Trade Act, is included in this solicitation.)

(i)

(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or

Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or *Israeli End Products*:

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Other Foreign End Products:

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR [25.105](#)).

Line Item No. _____

[List as necessary]

(v) The Government will evaluate *offers* in accordance with the policies and procedures of FAR [part 25](#).

(2) *Buy American-Free Trade Agreements-Israeli Trade Act*

Certificate, Alternate II. If Alternate II to the clause at FAR [52.225-3](#) is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act”:

Israeli End Products:

[List as necessary]

(3) *Buy American-Free Trade Agreements-Israeli Trade Act*

Certificate, Alternate III. If Alternate III to the clause at [52.225-3](#) is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Korean, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Free Trade Agreement Country End Products (Other than Bahraini, Korean, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

[List as necessary]

(4) *Trade Agreements Certificate.* (Applies only if the clause at FAR [52.225-5](#), Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR [part 25](#). For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) *Certification Regarding Responsibility Matters (Executive Order 12689)*.

(Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals—

(1) ☐ Are, ☐ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) ☐ Have, ☐ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) ☐ Are, ☐ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) ☐ Have, ☐ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at [9.104-5\(a\)\(2\)](#) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) *The tax liability is finally determined*. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.
(ii) *Examples.*

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) *Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126).* [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at [22.1503\(b\)](#).]

(1) *Listed end products.*

(2) *Certification.* [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

☐ (i) *The offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.*

☐ (ii) *The offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.*

(j) *Place of manufacture.* (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards* (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [*The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.*]

☐ (1) *Maintenance, calibration, or repair of certain equipment as described in FAR [22.1003-4](#)(c)(1).* The offeror ☐ does ☐ does not certify that—

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR [22.1003-4](#)(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

☐ (2) *Certain services as described in FAR [22.1003-4](#)(d)(1).*

The offeror ☐ does ☐ does not certify that—

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR [22.1003-4\(d\)\(2\)\(iii\)](#));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies—

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(1) *Taxpayer Identification Number (TIN)* ([26 U.S.C. 6109](#), [31 U.S.C. 7701](#)). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of [31 U.S.C. 7701\(c\)](#) and [3325\(d\)](#), reporting requirements of [26 U.S.C. 6041, 6041A, and 6050M](#), and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government ([31 U.S.C. 7701\(c\)\(3\)](#)). If the resulting contract is subject to the payment reporting requirements described in FAR [4.904](#), the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) *Taxpayer Identification Number (TIN)*.

☐ TIN: _____.

☐ TIN has been applied for.

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government;

☐ Offeror is an agency or instrumentality of the Federal Government.

(4) *Type of organization.*

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

☐ Corporate entity (tax-exempt);

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR 1.6049-4;

☐ Other _____.

(5) *Common parent.*

☐ Offeror is not owned or controlled by a common parent;

☐ Name and TIN of common parent:

Name _____.

TIN _____.

(m) *Restricted business operations in Sudan.* By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) Prohibition on Contracting with Inverted Domestic Corporations.

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at [9.108-2\(b\)](#) applies or the requirement is waived in accordance with the procedures at [9.108-4](#).

(2) *Representation.* The Offeror represents that—

(i) It ☐ is, ☐ is not an inverted domestic corporation; and

(ii) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(o) Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) *Representation and Certifications.* Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror-

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR [25.703-2](#)(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if-

(i) This solicitation includes a trade agreements certification (e.g., [52.212-3](#)(g) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) *Ownership or Control of Offeror.* (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it ☐ has or ☐ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: _____.

Immediate owner legal name: _____.

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity: ☐ Yes or ☐ No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: _____.

Highest-level owner legal name: _____.

(Do not use a "doing business as" name)

(q) Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that—

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that—

(i) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) Predecessor of Offeror. (Applies in all solicitations that include the provision at [52.204-16](#), Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it ☐ is or ☐ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: (or mark "Unknown").

Predecessor legal name: _____.

(Do not use a "doing business as" name).

(s) [Reserved].

(t) *Public Disclosure of Greenhouse Gas Emissions and Reduction Goals*. Applies in all solicitations that require offerors to register in SAM ([12.301](#)(d)(1)).

(1) This representation shall be completed if the Offeror received \$7.5 million or more in contract awards in the prior Federal fiscal year. The representation is optional if the Offeror received less than \$7.5 million in Federal contract awards in the prior Federal fiscal year.

(2) Representation. [Offeror to check applicable block(s) in paragraph (t)(2)(i) and (ii)].

(i) The Offeror (itself or through its immediate owner or highest-level owner) ☐ does, ☐ does not publicly disclose greenhouse gas emissions, i.e., makes available on a publicly accessible website the results of a greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.

(ii) The Offeror (itself or through its immediate owner or highest-level owner) ☐ does, ☐ does not publicly disclose a quantitative greenhouse gas emissions reduction goal, i.e., make available on a publicly accessible website a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.

(iii) A publicly accessible website includes the Offeror's own website or a recognized, third-party greenhouse gas emissions reporting program.

(3) If the Offeror checked "does" in paragraphs (t)(2)(i) or (t)(2)(ii) of this provision, respectively, the Offeror shall provide the publicly accessible website(s) where greenhouse gas emissions and/or reduction goals are reported: _____.

(u)

(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) *Representation*. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) *Covered Telecommunications Equipment or Services-Representation*. Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that—

(i) It ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)

Alternate I (FEB 2024). As prescribed in [12.301](#) (b)(2), add the following paragraph (c)(12) to the basic provision:

(12) (Complete if the offeror has represented itself as disadvantaged in paragraph (c)(5) of this provision.)

☐ Black American.

☐ Hispanic American.

☐ Native American (American Indians, Eskimos, Aleuts, or Native Hawaiians).

☐ Asian-Pacific American (persons with origins from Burma, Thailand, Malaysia, Indonesia, Singapore, Brunei, Japan, China, Taiwan, Laos, Cambodia (Kampuchea), Vietnam, Korea, The Philippines, Republic of Palau, Republic of the Marshall Islands, Federated States of Micronesia, the Commonwealth of the Northern Mariana Islands, Guam, Samoa, Macao, Hong Kong, Fiji, Tonga, Kiribati, Tuvalu, or Nauru).

- Subcontinent Asian (Asian-Indian) American (persons with origins from India, Pakistan, Bangladesh, Sri Lanka, Bhutan, the Maldives Islands, or Nepal).
- Individual/concern, other than one of the preceding.

52.229-11 TAX ON CERTAIN FOREIGN PROCUREMENTS—NOTICE AND REPRESENTATION (JUN 2020)

(a) *Definitions.* As used in this provision—

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

United States person as defined in 26 U.S.C. 7701(a)(30) means—

- (1) A citizen or resident of the United States;
 - (2) A domestic partnership;
 - (3) A domestic corporation;
 - (4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and
 - (5) Any trust if—
 - (i) A court within the United States is able to exercise primary supervision over the administration of the trust; and
 - (ii) One or more United States persons have the authority to control all substantial decisions of the trust.
- (b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.
- (c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that—

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates “is” in paragraph (d)(1) of this provision, then the Offeror represents that—I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [*Offeror shall select one*] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then—

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects “is” in paragraph (d)(1) and “partial or no exemption” in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. **For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.**

(End of provision)

**ADDENDUM TO SOLICITATION PROVISIONS
FAR AND DOSAR PROVISIONS NOT PRESCRIBED IN PART 12**

**52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE
(OCT 1998)**

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. In addition, the full text of a clause may be accessed electronically at Acquisition.gov this address is subject to change.

If the Federal Acquisition Regulation (FAR) is not available at the location indicated above, use the Department of State Acquisition website at e-CFR to see the links to the FAR. You may also use an Internet “search engine” (for example, Google, Yahoo or Excite) to obtain the latest location of the most current FAR.

**THE FOLLOWING FEDERAL ACQUISITION REGULATION
SOLICITATION PROVISIONS ARE INCORPORATED BY REFERENCE:**

**52.225-25 PROHIBITION ON CONTRACTING WITH ENTITIES
ENGAGING IN CERTAIN ACTIVITIES OR TRANSACTIONS RELATING TO
IRAN—REPRESENTATION AND CERTIFICATIONS (JUN 2020)**